

Jaspreet Singh Alias Jassi Singh vs State Of Punjab on 17 November, 2023

Neutral Citation No:=2023:PHHC:

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2023:PHHC:146084

IN THE HIGH COURT OF PUNJAB & HARYANA
AT CHANDIGARH

CRM-M-57240-2023

Date of decision : 17.11.2023

JASPREET SINGH ALIAS JASSI SINGH

....Petitioner

Versus

STATE OF PUNJAB

....Respondent

CORAM: HON'BLE MR. JUSTICE KULDEEP TIWARI

Present : Mr. Bikramjeet Singh Jatana Advocate
for the petitioner.

Mr. Pankaj Khullar, AAG, Punjab.

KULDEEP TIWARI.J. (ORAL)

1. The instant petition has been filed under Section 439 Cr.P.C.for grant of regular bail in case FIR No. 245 dated 04.09.2023, registered under Sections 379-B IPC (Sections 394, 325, 323 of IPC added lateron) at Police Station Sadar Mansa, District Mansa.

2. The investigation agency was put in motion on a complaint made by one Karnail Singh s/o Chuhar Singh alleging therein that:-

"on 04.09.2023, he was going to his duty on his motorcycle CD Delux bearing registration No.PB-31-M-0970 from village Kotli Kalan to Khokhar Khurd. When he crossed minor bridge in the area of village Sadda Singh Wala and was going towards village Sadda Singh Wala, three persons crossed him who were have motorcycle Splendor. They followed him. The person who was sitting between them, snatched his mobile. The person who was sitting behind, gave 1 of 3 Neutral Citation No:=2023:PHHC:146084 2023:PHHC:146084 iron rod blow on his head. He (complainant) fell on the ground. The driver of motorcycle snatched Rs.4500/- from

his pocket. In the meantime, his son Amandeep Singh reached at the spot. He raised alarm. All the three persons fled away from the spot. He came to know that the persons were Mandeep Singh son of Surjit Singh, resident of Khiala Kalan, Jassi Singh Malkapur Khiala and Jagga Singh resident of Khokhar Khurd."

3. Learned counsel for the petitioner submits that it is not a case of robbery. In fact, it was a quarrel among the complainant and the accused persons which has been given a color of robbery. He further submits that petitioner is behind the bars since 17.09.2023. He further submits that the investigation has been completed and the petitioner is no more required for any further investigation. He further submits that the petitioner is not involved in any other criminal case and he is first time offender.

4. On the other hand, learned State counsel opposed the bail application of the petitioner, on the ground that this is a case of robbery and snatching, however, he admits that the investigation is complete and their agency is going to file final report before the learned Illaqa/Magistrate concerned very soon. Learned State counsel has also placed on record the custody certificate issued by Nd Negi, Superintendent of Central Jail, Bathinda, which reveals that the petitioner has undergone incarceration for about 2 months as on today and he is not involved in any other case. The trial is yet to commence, therefore, same will take long time to conclude.

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5. Therefore, the present petition is allowed. The petitioner is ordered to be released on bail on furnishing of bail bond and surety bond to the satisfaction of concerned Chief Judicial Magistrate/trial Court/Duty Magistrate.

6. However, anything observed here-in-above shall have no effect on the merits of the case and is meant for deciding the present petition only.

(KULDEEP TIWARI) 17.11.2023 JUDGE monika Whether speaking/reasoned ? Yes/No Whether Reportable ? Yes/No Neutral Citation No:=2023:PHHC:146084 3 of 3